

Glossop Water Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xxxv

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CHAPTER xxxv

An Act to transfer to the mayor aldermen and burgesses of the borough of Glossop as part of their water undertaking the Hurst reservoir of the commissioners of the Glossop reservoirs to provide for the dissolution of the said commissioners and the redemption of mortgages granted by the said commissioners to empower the said mayor aldermen and burgesses to construct a waterwork and to acquire lands for the purposes of their water undertaking to make further provision with respect to that undertaking and for other purposes.

[1st August 1952.]

WHEREAS—

(1) By the Act 7 Will. 4 & 1 Vict. c. lxxix intituled “An Act for making and maintaining reservoirs upon the tributary streams of the river Etherow otherwise the Mersey in the parish of Glossop in the county of Derby for more effectually and regularly supplying with water the mills manufactories and works on the said tributary streams and river” the commissioners of the Glossop reservoirs (hereinafter referred to as “the commissioners”) were incorporated and powers were conferred upon them to construct three impounding reservoirs and to use the waters impounded thereby for the purpose of providing a regular flow of water in the river Etherow and certain of its tributary streams for the use of the mills manufactories and works on the said river and streams:

(2) In pursuance of the said powers the commissioners constructed a reservoir known as the Hurst reservoir in the parish of Charlesworth in the rural district of Chapel-en-le-Frith in the county of Derby:

(3) The mayor aldermen and burgesses of the borough of Glossop (hereinafter referred to as "the Corporation") are by the Glossop Waterworks Act 1865 and the Glossop Order 1928 charged with the duty of supplying water within the limits prescribed by that Act and Order:

(4) The Corporation are in urgent need of a further supply of water to enable them to carry out their statutory duties of supplying water:

(5) It is expedient that the Hurst reservoir should be transferred to and vested in the Corporation upon the terms and conditions in this Act contained:

(6) It is expedient that the Corporation should be empowered to construct the waterwork authorised by this Act and to acquire certain additional lands for the purposes of their water undertaking:

(7) It is expedient that the Corporation should be authorised to intercept abstract take and use water under the powers conferred by this Act for the purposes of their water undertaking:

(8) It is expedient that the commissioners should be dissolved and that the mortgages granted by the commissioners should be transferred to the Corporation and redeemed as provided by this Act:

(9) It is expedient that the said Act 7 Will. 4 & 1 Vict. c. lxxix should be repealed and that the other provisions in this Act contained consequent on the dissolution of the commissioners should be enacted:

(10) Estimates have been prepared by the Corporation in relation to the following purpose in respect of which they are authorised by this Act to borrow money and such estimates are as follows:—

The construction of the waterwork authorised by this Act and works in connection there- with	£ 28,200
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(11) The work included in the said estimates is a permanent work and it is expedient that the cost thereof should be spread over a term of years as provided by this Act:

(12) It is expedient that the other provisions of this Act should be enacted:

(13) The objects of this Act cannot be attained without the authority of Parliament:

(14) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(15) A plan and sections showing the lines and levels of the work to be authorised by this Act and a book of reference to the plan containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the county council of the administrative county of Derby which plan sections and book of reference are in this Act respectively referred to as the deposited plan the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Glossop Water Act 1952. Short and
collective titles.
(2) The Glossop Waterworks Act 1865 the Glossop Order 1928 and this Act may be cited together as the Glossop Water Acts and Order 1865 to 1952.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

(a) The Lands Clauses Acts with the following exceptions and modifications:—

(i) Section 92 and sections 127 to 133 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(ii) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

(iii) The expression “the promoters of the undertaking” shall be construed to mean the Corporation;

(b) The following provisions of the Third Schedule to the Water Act 1945:—

Part I (Interpretation) so far as it relates to the following provisions of the said Third Schedule;

Part II (Works and lands) except sections 7 8 and 9;

Part IV (Minerals underlying waterworks);

In Part XVI (General and miscellaneous) section 94:

Provided that for the purposes of the incorporated provisions of the Third Schedule to the Water Act 1945—

- (i) section 2 of the said schedule shall be read and have effect as if for the words “the plans submitted to the Minister” there were substituted the words “the deposited plan” and for the words “the said plans” there were substituted the words “the deposited sections”;
- (ii) section 12 of the said schedule shall be read and have effect as if for the words “after this section is incorporated with their enactments” there were substituted the words “under the special Act” for the words “all existing pipes or other conduits for the collection passage or distribution of water and underground works belonging to them” there were substituted the words “all such pipes or other conduits or underground works” and as if the words “for the time being belonging to them” were omitted;
- (iii) the expression “the undertakers” shall be construed to mean “the Corporation”.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

- “Act of 1837” means the Act 7 Will. 4 & 1 Vict. c. lxxix intituled “An Act for making and maintaining reservoirs upon the tributary streams of the river Etherow otherwise the Mersey in the parish of Glossop in the county of Derby for more effectually and regularly supplying with water the mills manufactories and works on the said tributary streams and river”;
- “borough” means the borough of Glossop;
- “commissioners” means the commissioners of the Glossop reservoirs;
- “Corporation” means the mayor aldermen and burgesses of the borough;
- “date of transfer” means the first day of October one thousand nine hundred and fifty-two;
- “general rate fund” and “general rate” mean respectively the general rate fund and the general rate of the borough;

9. Subject to the provisions of this Act on and after the date of transfer the Corporation may collect intercept abstract impound take use divert and appropriate for the purposes of the water undertaking the waters of Hurst Brook Span Clough Holden Clough and Ramsley Clough and all such springs streams and waters as are or may be taken or intercepted by means of the Hurst reservoir or at a point not more than one hundred yards below the foot of the embankment of the Hurst reservoir. Power to take waters.

10.—(1) Subject to the provisions of this Act the Corporation shall not at any time during the period from the date of transfer to the first filling of the Hurst reservoir after the Hurst reservoir has been repaired renewed altered enlarged or extended and a preliminary certificate has been granted in accordance with subsection (2) of section 1 of the Reservoirs (Safety Provisions) Act 1930 collect intercept abstract impound take use divert and appropriate from the Hurst Brook any water so as to reduce the aggregate quantity of water then flowing in the brook immediately below the point of abstraction during any day of twenty-four hours reckoned from midnight to less than two hundred and fifty thousand gallons and before taking any water from the said brook the Corporation shall on an approved site construct and maintain in good order an approved gauge to measure the flow of the brook. Provisions as to compensation water.

(2) Subject to the provisions of this section after such first filling of the Hurst reservoir and the grant of such certificate as is mentioned in subsection (1) of this section the Corporation shall at an approved point situate not more than one hundred yards below the foot of the embankment of the Hurst reservoir discharge into the Hurst Brook from or from streams feeding the Hurst reservoir during every day of twenty-four hours reckoned from midnight in a uniform and continuous flow not less than two hundred and fifty thousand gallons or such other quantity of water as shall be required under subsection (3) of this section and for the purpose of measuring such discharge the Corporation shall on an approved site construct and maintain in good order an approved gauge.

(3) If as a result of an increase in the capacity of the Hurst reservoir the reliable daily yield of the catchment area of the Hurst reservoir shall be more than one million gallons per day and if and whenever as a result of a further increase in the capacity of the Hurst reservoir the reliable daily yield of the catchment area of the Hurst reservoir shall be further increased the minimum quantity of water which the Corporation are required to discharge under subsection (2) of this section shall be increased or further increased to such quantity as may be agreed

between the Corporation and the Mersey River Board or failing such agreement as may be determined by arbitration having regard to the capacity of the Hurst reservoir at that time.

(4) If the Corporation—

(a) fail to comply with the requirements of subsections (1) and (2) of this section with respect to the construction or maintenance in good order of any such gauge as aforesaid or refuse to allow any person interested (including the Mersey River Board) to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records ; or

(b) take any water from the Hurst Brook contrary to the provisions of subsection (1) of this section or fail to comply with the requirements of subsection (2) of this section with respect to the discharge of water into the Hurst Brook ;

they shall without prejudice to their civil liability (if any) to a person affected by such non-compliance (including the Mersey River Board) be liable in the case of an offence under paragraph (a) of this subsection to a penalty not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued and in the case of an offence under paragraph (b) of this subsection—

(i) on summary conviction to a penalty not exceeding fifty pounds in respect of each such day ; and

(ii) on conviction on indictment to a penalty not exceeding five hundred pounds in respect of each such day.

(5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Corporation can collect intercept abstract impound take use divert or appropriate by means of the Hurst reservoir or otherwise except in respect of any lands situate between the foot of the embankment of the Hurst reservoir and the point of discharge approved for the purposes of subsection (2) of this section.

(6) In this section the expression “gauge” includes a gauge weir or other apparatus for measuring the flow of water and the expression “approved” means approved by the Minister of Housing and Local Government.

11. On and after the date of transfer the Corporation may for the purpose of repairing altering cleansing emptying examining or testing the Hurst reservoir and while any necessary works thereto are being carried out cause the water in such reservoir or which would otherwise flow into such reservoir to be discharged into Hurst Brook :

Provided that the Corporation shall take all necessary steps to secure that any water discharged by them under the provisions of this section shall be as free as may be reasonably practicable from mud and silt from solid polluting offensive or injurious matters and from any matter prejudicial to fish or spawn or to spawning beds or food of fish.

12. For the purposes of the supply of water by the Corporation the Corporation shall have the powers of a local authority under section 119 of the Public Health Act 1936 in respect of the laying and maintenance of water mains within or without their district and in exercising the powers of that section any area within the limits within which the Corporation are for the time being authorised to supply water shall be deemed to be included in their district: Further power as to mains.

Provided that in the exercise of the said powers the Corporation shall be subject to the provisions so far as they are applicable of subsections (1) and (2) of section 278 and sections 331 333 and 334 of the said Act of 1936.

13.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated and numbered 2 3 and 4 on the deposited plan and described in the deposited book of reference as may be required for the purpose of the waterwork authorised by this Act or for any purpose connected with or ancillary to the water undertaking. Power to acquire certain lands compulsorily.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October one thousand nine hundred and fifty-two.

14.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plan or in the deposited book of reference the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the administrative county of Derby for the correction thereof. Correction of errors in deposited plan and book of reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the county council of the administrative county of Derby and a copy thereof shall be deposited with the clerk of the council of the rural district of Chapel-en-le-Frith and the clerk of the council

of the parish of Charlesworth and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

Acquisition of
part only of
certain
properties.

15.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory park or garden.

Power to
expedite entry.

16. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Corporation may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to enter
for survey or
valuation.

17. Any person acting on behalf of the Corporation and duly authorised by the town clerk may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

18. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account— Disregard of recent improvements and interests.

(a) any improvement or alteration made or building erected after the fifth day of December one thousand nine hundred and fifty-one ; or

(b) any interest in the land created after the said date ;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

19.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished. Extinction of private rights of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

20.—(1) The Corporation may enter into and carry into effect agreements with any person being the owner of or interested in any land abutting on any portion either of the work authorised by this Act or of land that may be acquired under this Act with respect to the sale by the Corporation to him of any land. Agreements with adjoining owners.

(2) The Corporation may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Corporation for the purposes of this Act.

21. On the date of transfer the rights of Bernard Marmaduke Fitz-Alan Howard Sixteenth Duke of Norfolk his heirs successors and assigns excepted and reserved under a conveyance dated the eleventh day of July one thousand eight hundred and forty-two to all game fish and wild fowl in or upon such of the land thereby conveyed and any reservoir to be made thereon as comprises the Hurst reservoir and for full and free liberty of egress or regress for the said Bernard Marmaduke Fitz-Alan Determination of sporting rights of Duke of Norfolk on Hurst reservoir.

Howard his heirs successors and assigns or their agents gamekeepers and servants at all times to shoot fish hawk follow kill take or destroy all game fish and wild fowl in and upon the said land and reservoir shall cease and determine.

Determination
of agreement
with James
Rowbottom
Limited.

22. On the date of transfer the rights of James Rowbottom Limited (in this section referred to as "the company") and their assigns under an agreement made between the commissioners of the one part and the company of the other part and dated the twenty-second day of October one thousand nine hundred and forty-two to the supply of water for the purposes of the sprinklers therein mentioned by means of a six-inch pipe line from the Hurst reservoir to the premises therein mentioned and all other rights of the company and their assigns subsisting at the date of transfer to the supply of water from the Hurst reservoir shall cease and determine.

Evidence
of transfer.

23. The production of a Queen's Printer's copy of this Act duly stamped shall be conclusive evidence in all courts and proceedings of the transfer and vesting in the Corporation of the Hurst reservoir.

Obligations on
commissioners
until transfer.

24. Until the date of transfer the commissioners shall maintain and carry on the Hurst reservoir as heretofore in the ordinary course of business but the commissioners shall not without the previous consent in writing of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect of the Hurst reservoir which shall extend beyond the date of transfer except such as shall be necessary to carry into execution existing contracts for works and such as shall be in the ordinary course of the maintenance and proper conduct of the Hurst reservoir.

Winding up
and dissolution
of commis-
sioners.

25.—(1) From and after the date of transfer the commissioners shall subsist only for the purposes of receiving and recovering any moneys which they are entitled to receive and recover and of winding up their affairs.

(2) As soon as practicable after the date of transfer the commissioners shall proceed to wind up their affairs and the property of the commissioners other than the Hurst reservoir shall be applied first in satisfaction of their liabilities other than mortgages granted by them and secondly in payment of interest on the said mortgages (including payment of arrears of interest).

(3) The commissioners shall on publication in a local newspaper or newspapers circulating in the borough of a notice signed by two or more commissioners and certifying that all the provisions of this Act relating to the commissioners have been complied with be by virtue of this Act dissolved.

26. Notwithstanding the provisions of section 33 (Repeal of Act of 1837) of this Act and notwithstanding the transfer to the Corporation of the Hurst reservoir the following provisions shall have effect:—

Saving of pending actions and contracts and books etc. to remain evidence.

(a) If on the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the commissioners in relation to the Hurst reservoir the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer of the Hurst reservoir to the Corporation but the same (save so far as it relates to any contract agreement liability or other obligation made or entered into in contravention of the provisions of section 24 (Obligations on commissioners until transfer) of this Act) may be continued prosecuted and enforced by against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by against or in favour of the commissioners if this Act had not been passed;

(b) Except as in this Act otherwise expressly provided all agreements conveyances contracts deeds and other instruments entered into or made with or by the commissioners and in force at the date of transfer so far as the same relate to the Hurst reservoir shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectively as if instead of the commissioners the Corporation had been a party thereto:

Provided that no agreement conveyance contract deed or other instrument shall be binding on or of any force or effect against or in favour of the Corporation if entered into or made in contravention of the provisions of section 24 (Obligations on commissioners until transfer) of this Act.

(c) All books and documents which if the transfer of the Hurst reservoir had not been made would have been evidence in respect of any matter for or against the commissioners shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

27.—(1) On the date of transfer such of the mortgages granted by the commissioners and charged upon the credit of the rates of the commissioners which shall be subsisting at

Transfer and redemption of mortgages.

that date (hereafter in this section referred to as "the mortgages") shall by virtue of this Act and without further assurance be transferred to the Corporation as mortgagors in place of the commissioners and notwithstanding the terms whether express or implied of the mortgages the Corporation shall have power to and shall redeem the mortgages in accordance with the provisions of this section.

(2) At the date of transfer or as soon as practicable thereafter not being more than six months after the said date there shall be paid to each mortgagee of the mortgages on redemption of the mortgage or mortgages of which he is the mortgagee the full principal value of the money secured by the mortgage or mortgages held by him but no payment shall be made in respect of interest or arrears of interest due or accruing due on such mortgage or mortgages.

(3) On the payment on redemption as aforesaid being made a mortgage in respect of which such payment is made shall be discharged absolutely and all rights of the mortgagee in respect thereof shall cease and determine.

(4) For the purposes of this section the several persons whose names appear in the register of mortgages kept by the commissioners as the mortgagees of the commissioners shall be presumed to be the mortgagees in respect of the mortgages against which their names appear in the said register and the receipt in writing of any such person or of the executors or administrators of any such person or of the guardian of the estate of any such person being a minor shall be an effectual discharge of the mortgage in respect of which the receipt for payment is given.

(5) Where the Corporation are for six months after the date of transfer unable after diligent inquiry to ascertain the person to whom any such payment on redemption ought to be made or who can give an effectual receipt therefor or are otherwise unable to obtain an effectual receipt they may make such payment into court as if the money to be so paid on redemption belonged to a trust of which they were the trustees.

Power to
inspect books
before transfer
etc.

28.—(1) The Corporation may by the town clerk or other officer duly authorised in that behalf at any time before the date of transfer inspect and take copies of or extracts from all or any of the minute or other books kept by the commissioners in relation to their undertaking and the commissioners shall at all times afford all reasonable facilities for the purpose.

(2) The commissioners shall as soon as practicable after the date of transfer deliver to the town clerk the register of mortgages granted by the commissioners.

(3) The commissioners and all officers and other persons in the employment of the commissioners immediately before the date of transfer having at that date in their possession or under their control any books papers deeds plans sections or other documents relating to the Hurst reservoir or to the mortgages referred to in the foregoing section shall be liable to account for and deliver up such documents to the town clerk or other officer duly authorised in that behalf.

29.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall repay all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column thereof:—

(1) Purpose	(2) Amount	(3) Period for repayment
(a) The payment of any sum required for the purpose of redeeming the mortgages granted by the commissioners.	The sum requisite	Sixty years from the date or respective dates of borrowing.
(b) The purchase of lands under the powers of this Act.	£1,100	Sixty years from the date or dates of borrowing.
(c) The construction of the water-work authorised by this Act and works in connection therewith.	£28,200	Thirty years from the date or dates of borrowing.
(d) The costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) The provisions of Part IX of the said Act of 1933 so far as such provisions are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

30. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.

Application of
Arbitration
Act.

31. Where under this Act any question or dispute is to be referred to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other) and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

Application of
section 265 of
Public Health
Act 1875.

32. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted therein.

Repeal of Act
of 1837.

33. As from the date of transfer the Act of 1837 shall be repealed:

Provided that such of the provisions of the said Act as are required for the purposes of section 25 (Winding up and dissolution of commissioners) of this Act shall not be repealed until the completion of those purposes.

Saving for
town and
country
planning.

34. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

35. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of moneys to be borrowed under this Act for that purpose.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Glossop Waterworks Act 1865	28 & 29 Vict. c. cxv.
Public Health Act 1875	38 & 39 Vict. c. 55.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5. c. 57.
Reservoirs (Safety Provisions) Act 1930	20 & 21 Geo. 5. c. 51.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Water Act 1945	8 & 9 Geo. 6. c. 42.
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6. c. 42.
Arbitration Act 1950	14 Geo. 6. c. 27.

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*Glossop Water
Act, 1952*

15 & 16 GEO. 6
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